

Tentative Rulings for June 8, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202260	LOZANO VS LEDESMA & MEYER CONSTRUCTION CO., INC.	MOTION FOR RECONSIDERATION (CCP S 1008)

Tentative Ruling:

The Court denies this motion for reconsideration. The matter is off calendar.

The Court reiterates its order on April 17, 2026:

Court has read and considered court filings.

The Court having read and considered the pleadings of both parties, having read and considered the Court of Appeal's Remittitur filed January 20, 2026, denies the instant "Motion to Reactivate Case on Complaint" Hearing re: Motion (to Reactivate Case) on 04/24/2026 at 08:30 AM vacated.

The Court of Appeal stated in its November 17, 2025 Order:

"The court has reviewed the civil case information statement filed November 10, 2025, the notice of appeal filed October 16, 2025, the judgment entered July 17, 2023, from which appellant attempts to appeal, and the notice of entry of judgment dated August 4, 2023. Because the appeal appears to be untimely, it must be and is DISMISSED. California Rules of Court, rule 8. 104(a) provides that a notice of appeal must be filed within 60 days following service of the notice of entry of judgment or 180 days after entry of judgment, whichever is earlier. In this case, the notice of appeal was filed 804 days following service of the notice of entry and 822 days after entry of judgment. The timeliness requirement is absolutely jurisdictional. There are no exceptions other than those provided in California Rules of Court, rule 8. 108. (K.J. v. Los Angeles Unified School Dist. (2020) 8 Cal.5th 875, 881; Garg v. Garg(2022) 82 Ca1.App. 5th 1036, 1041.) Thus, the court has no jurisdiction over this appeal."

In plain language, this case has ended.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501278	NIZAM VS TAPIA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court declines to rule on all evidentiary objections. The request for summary adjudication is improper and is denied as it fails to comply with California Rules of Court, rule 3.1350(b) and (d) and CCP § 437c(f)(1). The court treats this as a motion for summary judgment.